

REQUIRED DOCUMENTATION FOR IFPE DUE DILIGENCE

The following documentation is required to begin the due diligence review. The documents should be organized by subject matter and uploaded in a secure data room with clear file names. If a document is not applicable, does not exist, or is still in preparation, please provide a brief explanation and any equivalent evidence available.

The initial request may be supplemented if inconsistencies, incomplete information, unusual transactions, regulatory observations, tax exposures, technological weaknesses or other relevant risks are identified during the review.

1. Corporate Standing, Ownership and Governance

These documents allow us to confirm the legal existence, ownership structure, decision-making framework and corporate history of the IFPE.

Required documentation	Document available
Incorporation deed, current bylaws, amendments to the bylaws and proof of registration with the Public Registry of Commerce.	☐
Corporate books, including shareholder or equity interest registry, minutes books and capital variation records.	☐
Current capitalization table and description of the direct and indirect ownership structure.	☐
Information on shareholders, beneficial owners, controllers, voting arrangements and source of funds of relevant investors.	☐
Shareholder agreements, option plans, warrants, convertible instruments, pledges, liens or other restrictions affecting ownership interests.	☐
Current powers of attorney, authority matrix, relevant revocations and evidence of the authority of legal representatives.	☐
Shareholders' meetings, board minutes, committee resolutions and written consents for the last twenty-four months or since incorporation.	☐
Corporate and functional organization chart, including parent companies, subsidiaries, affiliates, related parties and reporting lines.	☐
Identification, general information and professional profiles of controlling shareholders, directors, officers, Compliance Officer, CTO/CISO and other key personnel.	☐
Material related-party agreements, intercompany loans, guarantees, management agreements, shared services or cost-sharing arrangements.	☐

2. Regulatory Authorization and Supervisory Status

These documents are required to verify whether the IFPE is duly authorized, whether the authorized model matches the actual operation, and whether there are pending regulatory risks.

Required documentation	Document available
Authorization granted by the National Banking and Securities Commission (CNBV) to organize and operate as an IFPE, including annexes, conditions, amendments and complementary authorizations.	☐
Banco de Mexico opinions, communications, approvals or observations related to the IFPE authorization, payment systems, clearing, settlement, transfers or electronic payment funds.	☐
Evidence of start of operations and description of the business model authorized by, or submitted to, the competent authorities.	☐
Current list of authorized activities, products, services, channels and any pending application to modify the business, technology or operating model.	☐

Regulatory obligations calendar and evidence of essential filings or regulatory reports submitted during the last twenty-four months or since start of operations.	☐
Relevant communications with CNBV, Banco de Mexico, CONDUSEF, UIF, SAT or any other authority during the last twenty-four months or since incorporation.	☐
List of inspections, information requests, observations, administrative proceedings, sanctions, fines, corrective measures, warnings or pending regulatory obligations.	☐
Evidence of applicable registrations or regulatory portals, including SITI, SIPRES, CONDUSEF/RECA, AML/CFT portal, Banco de Mexico portals or equivalent systems. Credentials should not be delivered by email.	☐
Internal control, corporate governance, risk management, compliance, outsourcing and regulatory reporting policies applicable to the IFPE.	☐

3. IFPE Operations and Client Funds

These documents are central to understanding how the IFPE issues, administers, transfers, redeems and reconciles electronic payment funds and how it safeguards client balances.

Required documentation	Document available
Description of products, services, channels, account types, currencies, transaction limits, means of disposition and main operational flows.	☐
Operating manual for issuance, administration, transfer, redemption, reimbursement, blocking, cancellation and refund of electronic payment funds.	☐
Terms and conditions, adhesion contracts, user disclosures, fee schedules, app notices, website notices and applicable regulatory registrations.	☐
User onboarding, account opening, identity verification, account maintenance, account blocking, offboarding and user lifecycle procedures.	☐
Transaction processing flow, including cash-in and cash-out mechanisms, SPEI or other transfer flows, card or processor flows, clearing, settlement, reversals and adjustments, as applicable.	☐
Banking agreements, operational accounts, concentration accounts, safeguarding accounts, authorized signatories and account administration policies.	☐
Client funds safeguarding and segregation policy, including trusts, mandates, bank account structures or equivalent arrangements, if applicable.	☐
Reconciliations among client balances, bank balances, platform ledger, processor records and accounting records for the last twenty-four months or since start of operations.	☐
Reports of clients, active accounts, balances, transaction volume, failed transactions, claims, chargebacks, refunds and operational incidents for the last twenty-four months or since start of operations.	☐
Report of dormant accounts, unclaimed balances, negative balances, manual adjustments, unreconciled items, exceptional transactions and material operational exceptions.	☐
Policies and evidence concerning customer support, complaints handling, escalation procedures, response times and relevant metrics for user claims.	☐

4. AML/CFT Compliance

These documents allow us to assess whether the IFPE has a functioning anti-money laundering and counter-terrorist financing framework aligned with its risk profile and operating model.

Required documentation	Document available
Current AML/CFT compliance manual and evidence of internal approval by the competent corporate body.	☐
Appointment of the Compliance Officer and integration of the Communication and Control Committee or equivalent body, when applicable.	☐
Risk-based approach methodology, risk matrix and segmentation of clients, products, services, channels, operations and geographic areas.	☐
Customer identification, due diligence and enhanced due diligence policies, including beneficial owners, PEPs, sanctions screening and authorized third parties.	☐

Sample client files or anonymized sample files, including high-risk clients, rejected clients and remediation evidence, if applicable.	☐
Contract with the AML/CFT automated monitoring system provider, together with a description of rules, scenarios, alert workflow, investigation process and closure criteria.	☐
Acknowledgments of applicable AML/CFT regulatory reports and evidence of alert monitoring during the last twenty-four months or since start of operations.	☐
AML/CFT audit reports, remediation plans, follow-up evidence and available training certificates for directors, officers and relevant personnel.	☐
List of unusual, internally concerning or relevant transactions, blocked accounts, rejected clients, authority requests and law-enforcement notices, if any.	☐

5. Technology, Cybersecurity and Critical Infrastructure

These documents are required to assess the reliability, security, ownership and resilience of the technology platform supporting the IFPE operation.

Required documentation	Document available
General technology architecture of the platform, mobile application, website, APIs, cloud infrastructure, databases, core ledger, critical systems and integrations.	☐
Information security policies covering access controls, MFA, authentication, encryption, user management, privileges, logs, change management, monitoring and incident escalation.	☐
Software ownership and licensing evidence, source code repository ownership, development methodology, DevSecOps controls, release process and change approvals.	☐
Evidence of penetration tests, vulnerability assessments, security audits, remediation plans and closure evidence.	☐
Business continuity plan, disaster recovery plan, backup policy, RTO/RPO targets and available test results.	☐
List of security incidents, operational contingencies, outages or relevant failures, including notices to authorities, clients or business partners.	☐
Contracts and service levels with critical providers, including cloud providers, processors, banks, KYC vendors, biometric providers, cybersecurity providers, APIs, payment networks and technology third parties.	☐
Vendor risk management files, outsourcing approvals or notices, due diligence of critical providers and exit or transition plans for material outsourced services.	☐

6. Personal Data, Privacy and User Information

These documents are required to review how the IFPE collects, processes, stores, transfers and protects personal data and user information.

Required documentation	Document available
Privacy notices, personal data policies, consents, data processing agreements and records of domestic or international data transfers.	☐
Procedures for handling ARCO rights or equivalent data subject rights, together with evidence of requests received and responses issued, if any.	☐
Data retention, deletion, anonymization, cookies, analytics, marketing communications and personal data breach response procedures.	☐
Contracts with data processors, technology providers or affiliates that process personal data on behalf of the IFPE.	☐

7. Tax, Accounting and Financial Information

These documents allow us to verify tax compliance, accounting consistency, treatment of client balances, revenue recognition and potential financial contingencies.

Required documentation	Document available
Tax Status Certificate, SAT compliance opinion, evidence of e.firma issuance or renewal and relevant tax returns for the last twenty-four months or since incorporation. e.firma credentials should not be delivered by email.	☐
Financial statements, trial balance, accounting ledgers, monthly financial information, integration of stockholders' equity and integration of client balances.	☐
Accounting policy for client balances, safeguarding accounts, commissions, fees, revenue recognition, refunds, chargebacks and transaction-related adjustments.	☐
CFDI samples, invoicing policy, VAT treatment and tax treatment of fees, commissions, intercompany charges and relevant operating income.	☐
List of tax credits, audits, inspections, information requests, debts or contingencies before SAT, IMSS, INFONAVIT, local tax authorities or other authorities.	☐
Capital contributions, shareholder loans, bank loans, investor agreements, funding arrangements, liquidity position and cash-flow forecasts.	☐
Annual and monthly financial reports delivered to shareholders, investors, lenders, regulators or other relevant stakeholders.	☐

8. Labor, Human Resources and Service Providers

These documents are required to understand the human resources structure, employment compliance and reliance on external personnel or contractors.

Required documentation	Document available
List of employees, officers, contractors and key consultants, including position, hiring scheme, compensation, seniority and scope of work.	☐
Employment agreements, contractor agreements, confidentiality obligations, non-compete or non-solicitation provisions and assignment of intellectual property rights.	☐
Payroll records, social security compliance, withholding compliance, benefits, bonus plans and any outsourcing or specialized services arrangements.	☐
Internal labor policies, remote work policies, code of conduct, disciplinary records and relevant HR procedures.	☐
Labor claims, termination disputes, audits, inspections, settlement agreements or contingent liabilities involving current or former personnel.	☐

9. Material Contracts, Intellectual Property and Insurance

These documents allow us to evaluate the contractual and intangible asset base supporting the IFPE operation.

Required documentation	Document available
Material commercial agreements with clients, merchants, distributors, referral partners, agents, service providers, processors, banks, affiliates and technology vendors.	☐
Standard contract templates used with clients, merchants, users, partners, providers and other counterparties.	☐
Intellectual property evidence, including trademarks, trade names, domain names, software rights, licenses, assignments from founders, employees and providers, and open-source usage policy.	☐
Insurance policies, including cyber risk, directors and officers, professional liability, crime/fidelity, general liability or other relevant coverage.	☐
Exclusivity, non-compete, minimum volume, most-favored-nation, termination, change-of-control or penalty provisions contained in material contracts.	☐

10. Litigation, Claims and Contingencies

These documents are required to identify existing or potential liabilities that may affect the transaction, valuation, authorization status or post-closing integration.

Required documentation	Document available
List of litigation, judicial, administrative, labor, tax, civil, commercial, criminal, regulatory or user claims involving the IFPE.	☐
CONDUSEF claims, user complaints, consumer protection matters, authority requests, investigations, sanctions, settlement agreements or pending proceedings.	☐
Letters, notices, default communications, potential claims, indemnity notices, contractual disputes or threatened proceedings involving clients, users, providers, shareholders or authorities.	☐
Internal reports, board materials or management reports identifying material contingencies, operational failures, fraud, cybersecurity events, regulatory concerns or financial exposures.	☐

11. Data Room and Controlled Access Protocol

To make the review efficient and secure, the information should be delivered in a structured and traceable manner.

Required documentation	Document available
Data room index organized by folder and document name, with version dates and a short description of each file.	☐
Documents should preferably be provided in searchable PDF format; spreadsheets, ledgers, reconciliations, databases and technical materials should also be provided in native editable format when relevant.	☐
Documents that cannot be exported from a portal may be reviewed through temporary read-only access or a supervised remote session coordinated with Rusconi Consulting.	☐
Passwords, private keys, e.firma files, API secrets, tokens, administrator credentials and other sensitive access elements should not be sent by email.	☐
Any missing, incomplete or non-applicable document should be identified with a short explanation and, where possible, equivalent evidence or an estimated delivery date.	☐

Final note

This document is intended as an initial professional request for information. Rusconi Consulting may request additional documents, confirmations, interviews or system reviews if the information provided reveals inconsistencies, incomplete records, regulatory issues, unusual transactions, technology risks, tax exposures, labor contingencies or other matters relevant to the due diligence review.